

Subject: 2026 Town Meeting

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Date: 4/27/26, 10:56

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Dear Town Meeting Moderator Greg Christiana,

Please, fix the errors listed below in your consent agenda and disseminate this email to Town Meeting Members.

Dear Town Meeting Members,

Some notes on consent agendas before the meeting tonight.

Consent Agenda(s)

I am against the use of single vote Consent Agenda(s) in principle. In particular:

Errors

The [current consent agenda](#) has:

Article 18 Bylaw Amendment / Regulation of Lead Pipe in Residential and Commercial Housing (No Action)

The ever changing [annotated Warrant](#) has:

Article # 18 BYLAW AMENDMENT / ADDITION OF CERTAIN DELINQUENT MUNICIPAL FEES/FINES TO BE A LIEN ON REAL ESTATE TAX ACCOUNT

Content listed at the beginning of each section of articles.

Select Board Articles

For questions about articles in this section, contact:

- John Hall, Select Board Clerk - jhall@townofshelburne.us
- Jim Fleming, Town Manager - jfleming@townofshelburne.us

Select Board articles that are amendments or additions to existing articles are listed below.

- [Article 18 Bylaw Amendment / Addition of Certain Delinquent Municipal Fees/Fines to be a Lien on Real Estate Tax Account](#) - [View Article](#)
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Article # 18 BYLAW AMENDMENT / ADDITION OF CERTAIN DELINQUENT MUNICIPAL FEES/FINES TO BE A LIEN ON REAL ESTATE TAX ACCOUNT

To see if the Town will vote to amend Title I, Article 21 ("Municipal Charges Lien") of the Town Bylaws, to include in the placement of a lien or liens onto any real estate tax accounts, any fees, fines, or penalties levied by a Town and/or School department upon a resident property owner and/or non-resident property owner of the Town, where such fee, fine, or penalty is delinquent. Said amended Bylaw is in accordance with Section 58 of Chapter 40A "Municipal Charges Lien" of the Massachusetts General Law, or take any action related thereto.

Inserted at the request of the Town Manager

[Select Board 2026 Article Hearings](#) - right click to view in new tab

Which is it? Further, no word "lead" or any other similar article as shown in the consent agenda exists in the warrant referencing lead pipes. Maybe you all are already aware of this problem, no doubt discussed behind closed doors or on private electronic groups, but us lowly residents will just have to trust that you won't vote without debate to authorize the manager to expropriate private property through the lien process.

From an outsiders view, this is just sloppy.

My principle here? No one person or small group of insiders should decide what is in front of Town Meeting after the warrant is issued bypassing the vetting process.

Citizen Articles

Also in the [current consent agenda](#) is:

Article 33 Acceptance of Legislation / M.G.L. c. 60 Section 62a (No Action)

Read the Selectmen's vote, it relies on a procedural issue raised by the town's lawyer. Further, the selectmen assume the role of the moderator with concerns of scope to vote no and tell the citizen to work with their lawyer. The consent agenda allows the moderator to deny the citizen to amend the vote and avoid a questionable ruling on scope. How very convenient!

The original article is very broad:

*"To see if the Town will vote to **adopt the local option** provided by General Law Chapter 60 Section 62A... **or take any action related thereto.**"*

*The "or take any action related thereto" language (standard in many warrants) gives significant flexibility. A properly drafted **bylaw** authorizing payment agreements under §62A would almost certainly fall **within scope**, because:*

- The core subject is implementing M.G.L. c. 60 §62A (payment agreements for tax title properties).*
- Switching from a simple "acceptance" to adopting a specific enabling bylaw is a procedural fix to achieve the same goal the petitioner described (helping homeowners avoid foreclosure while recovering taxes).*

This is common practice. Many towns use citizen petition articles as a vehicle to get the topic

before Town Meeting, then refine the exact language (often with input from Town Counsel) via motion or amendment at the meeting.

I am opposed to this article, but as a matter of principle, all citizen initiated articles should have a Town Meeting vote. I have received many complaints during previous town meetings where citizens are shut out by procedural maneuvers by elected officials from getting citizen articles in front of town meeting not understanding they can amend the selectmen's vote during Town Meeting.

Selectmen have spoken in the past that their vote should be the final vote on Warrant Articles. The Selectmen are the Executive branch of Arlington governance. Town Meeting is the Legislative branch. Imagine the president informing senators that legislation they propose needs to be vetted by their lawyer first.

Rubber Stamping Appropriations

In the consent agenda,

Article 36 Revolving Funds ○ ***Recurring article to re-authorize funds; approved annually by overwhelming margins.***

Town Meetings authority rests on appropriations and bylaws. You all should know by now of the more than \$6M in revolving funds in the school department that are off the books and not reported or appropriated. Town Meeting should not abdicate even minimal oversight on appropriations.

More apparent errors in the consent agenda

Article 61 Positions Reclassification ○ ***Annually recurring motion, involving personnel matters, usually approved unanimously.***

Article 62 Collective Bargaining ○ ***Funding for collective bargaining agreements for personnel working without a contract.***

In the [Russian Doll meeting materials references](#), the FinCom linked reports show these references, Article 62 is "forthcoming" and Article 61 meeting minutes show only the vote and nothing else related to the article. Hey, but vote yes tonight!

61	Positions Reclassification	3/9/26	FinCom03/09/26a genda	FinCom03/09/minutes	Committee Discussion 2:10:37
62	Collective Bargaining	3/30/2026	FinComAgenda0 3/30/2026	Forthcoming	Committee Discussion
63	Amendments to FY 26 Budgets	3/30/2026	FinComAgenda0 3/30/2026	Forthcoming	Committee Discussion

As the appropriating authority, Town Meeting is abdicating any oversight on more than 20

articles rubber stamped in a consent agenda after being rubber stamped by the Finance Committee. Hey finance is boring and we just got another \$15M compounded at 4.5% a year, time to party! After all, why should you discuss Free Cash and other funds?

- **Article 70** Appropriation/Financing of Construction or Reconstruction of Sewers and Sewer Facilities
 - Annually recurring motion, non-controversial, usually approved unanimously.
- **Article 71** Appropriation/Financing of Construction or Reconstruction of Water Mains and Water Facilities
 - Annually recurring motion, non-controversial, usually approved unanimously.
- **Article 73** Appropriation/Committees and Commissions
 - Annually recurring motion, non-controversial, usually approved unanimously.
- **Article 74** Appropriation/Town Celebrations And Events
 - Annually recurring motion, non-controversial, usually approved unanimously.
- **Article 75** Appropriation/Miscellaneous
 - Annually recurring motion, non-controversial, involving indemnifying medical costs of certain Town employees, usually approved unanimously.
- **Article 76** Appropriation/Water Bodies
 - Annually recurring motion, non-controversial, usually approved unanimously.
- **Article 78** Appropriation/Harry Barber Community Service Program
 - Annually recurring motion, non-controversial, usually approved unanimously.
- **Article 81** Appropriation/Pension Adjustment
 - Annually recurring motion involving an appropriation of \$0, non-controversial, usually approved unanimously.
- **Article 82** Local Option Taxes (**No Action** because no tax options available)
- **Article 83** Appropriation/OPEB
 - Annually recurring motion, non-controversial, usually approved unanimously.
- **Article 84** Transfer of Funds/Cemetery
 - Annually recurring motion, non-controversial, usually approved unanimously.
- **Article 85** Appropriation/Overlay Reserve
 - Annually recurring motion, non-controversial, usually approved unanimously.
- **Article 86** Appropriation/Long Term Stabilization Fund
 - Annually recurring motion, non-controversial, usually approved unanimously.
- **Article 87** **Free Cash**
 - Annually recurring motion, non-controversial, usually approved unanimously.
- **Article 88** Appropriation/Fiscal Stability Stabilization Fund
 - Required by law to deposit override money into the override stabilization fund.

Stephen Harrington